

		When ruling on a motion to expunge lis pendens, the court must award the prevailing party its reasonable attorney's fees and costs incurred in making or opposing the motion, unless the court finds either that: (1) the non-prevailing party acted with substantial justification; or (2) other circumstances make the imposition of attorney's fees and costs unjust. (Code Civ. Proc., § 405.38.) Such an award is to be made against the losing party only, not counsel. (<i>Doyle v. Superior Court</i> (1991) 226 Cal.App.3d 1355, 1359.) The court finds there was no substantial justification for the filing of the lis pendens. Since Respondent has not opposed this motion, the court reduces the "anticipated fees" from 4 hours to 1 hour. The court awards Petitioner reasonable attorney's fees of \$4,130.00 (\$350p/h x 11.8 hrs) payable by Respondent within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing. Counsel for Petitioner is ordered to serve notice of this ruling and/or may elect to prepare, file, and serve a proposed order after hearing.
01437433	Compas - Trust	TENTATIVE RULING Case: Compas - Trust 01437433 Calendar No: 7 Date: 09/02/26 MOTIONS TO COMPEL FURTHER RESPONSES TO INTERROGATORIES AND MOTION DEEM REQUESTS FOR ADMISSION ADMITTED (ROAs 32, 34, 35) Petitioner Patricia Compas ("Petitioner") brings the following motions: (1) motion for an order compelling answers to form interrogatories, set one (ROA 32); (2) motion for an order compelling answers to special interrogatories, set one (ROA 35); and (3) motion for an order deeming requests for admission admitted. The evidence before the court is that Petitioner's counsel propounded the aforementioned discovery on 9/3/25. Responses to the discovery requests were initially due 10/8/25. Five extensions were requested and granted.

		Thereafter, counsel for Respondent made several promises that the discovery responses were forthcoming. No responses had been served as of the date the motions were filed (i.e., 12/29/25). Moving party need not show anything more to obtain an order compelling responses to interrogatories. (Code Civ. Proc., § 2030.290.) Thus, the motions to compel responses to form and special interrogatories (ROAs 32 and 35) are GRANTED. Code of Civil Procedure section 2033.280 (c) states that “the court shall make the order [to deem requests for admission admitted], unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” Respondent served responses to requests for admission on 8/26/26 before the hearing on this motion. Thus, the motion to deem requests for admission admitted is DENIED. Pursuant to Code of Civil Procedure section 2030.290(c) and 2033.280(c), the court imposes reasonable monetary sanctions of \$719.40 per motion (i.e., 1.5 hours per motion, plus filing fees) for a total of \$2,158.20 payable by Respondent to the Law Offices of Daniel J. Cooper within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing. Counsel for Petitioner is ordered to give notice of ruling.
		TENTATIVE RULING Case: Calendar No.: Date: